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1. LICENSING

Below is a preliminary list of 'Licences' for the use and processing of data.

A DataSet may have several associated 'Licences' provided that they are not incompatible.

Code	Title	Scope
GEN-01	No Restrictions	Data labelled with this Licence may be used and (re)shared without further limitations and/or conditions imposed in accordance with the Licence.
GEN-02	Internal Sharing	Data labelled with this Licence may be (re)shared and used exclusively by the Adhering Parties.
GEN-03	Internal	Data labelled with this Licence may be used and (re)shared without further limitations and/or conditions imposed in accordance with the Licence.
		The above limitation applies to the Data or the Data Set itself, and does not extend to any product and/or service developed or generated by such internal use of the Data. Such products or services may be used commercially.
GEN-04	Internal Knowledge Generated	Data labelled with this Licence is intended for internal use only and may not be shared or used by any other party.
		The above limitation applies to the Data or the dataset itself and does not extend to any product and/or service, knowledge/know-how or similar developed or generated by such internal use of the Data. Such knowledge/know-how or similar may be used commercially.
GEN-05	Non-Commercial Use	Data labelled with this Licence may be freely used and (re)shared, provided that such use or sharing is for strictly non-commercial purposes.
		Any commercial use or purpose of the Data is strictly prohibited. This includes, but is not limited to:
		any use and/or (re)exchange of the Data for the purpose of receiving compensation or generating income; and use and/or (re)exchange of the Data for the purpose of developing products, services or similar items for commercial use.

GEN-06	Enrichment with proprietary data	Data labelled with this Licence may be enriched, but only with data generated by the direct recipient of the Data.
		Enrichment with data provided by third parties is strictly prohibited unless permitted by another applicable Licence.
GEN-07	Enrichment with third-party data	Data labelled with this Licence may be enriched, but only with data generated by the discloser and/or the direct provider of the Data.
		Data provided by third parties may be used for enrichment, but only if the data was generated directly by those third parties.
		Enrichment with data provided by third parties that was not generated by those third parties is strictly prohibited, unless permitted by another applicable Licence.
GEN-08	Enrichment with data provided by third parties	Data labelled with this Licence may be enriched, but only with data generated by third parties.
		Enrichment with data generated by the direct recipient of the Data is strictly prohibited, unless permitted by another applicable Licence.
GEN-09	Use for Service	Data labelled with this Licence may only be used and processed to the extent strictly necessary to provide services to an interested party.
GEN-10	Restricted use	Data labelled with this Licence may only be used and processed for the use indicated in the agreement.

2. TERMS AND CONDITIONS

Section 0. Data Provider

Name of the Entity	
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Section 1. Data Sets offered

#	Dataset Name	Type	Structure and format	Licence	Fees and payment method	Intellectual property

Section 2. Security Contact for the Supplier Entity

Name and Surname	
Position	
E_mail:	
Phone:	

Section 3: Data provided

- The Data, as well as its location, licence for use and method of distribution, are defined in section 1.
- The Data Provider shall ensure that it possesses all necessary rights and authorisations to make the Data available to the other Parties for use in accordance with the applicable terms and conditions.
- The Data Provider shall ensure that the data is available in accordance with the scheme established for it in Section 1

Section 4: Purpose(s) of Data Use

- The Data User (Dconnect_SM4) undertakes to comply with the provisions set out in the licence for the use and processing of data specified in Section 1 of this contract.

Section 5: Restrictions on data processing and redistribution

- The Data User undertakes to comply with the provisions set out in the licence for the use and processing of data specified in Section 1 of this contract.
- Data Users shall have the right to redistribute the Data to other Users, unless such redistribution has been specifically prohibited in Section 1.

Section 6: Permissions

The Data Provider shall ensure that there is an adequate permissions mechanism in place to guarantee that Data Subjects have control over their

data to the extent required by applicable laws, and that Data Users can obtain the permissions they need.

Section 7: Cessation of Data Provision

The Data Provider may cease supplying the Data by notifying Dconnect_SM4 at least ninety (90) days prior to the termination of the supply of the Data in question.

Section 8: Derivative Material

The following shall not be considered Derivative Material, and the rules relating to the use of the Data shall continue to apply if:

- the Data can be easily converted, reversed or implied from the Derivative Material to recreate the Data;
- the Derivative Material can be used as a substitute for the Data;

Section 9: Restrictions on the use and redistribution of derivative material

The Parties shall have the right to redistribute the Derivative Materials to the other Parties and to any Third Party, unless specifically prohibited in Section 1.

Section 10: Rates and payment terms

The use of Data is subject to fees and charges, provided that this is stipulated in Section 1.

Section 11. Reports

The use of the Data is not subject to specific reporting obligations.

Section 12. Audit

The use of the Data is subject to the following specific audit obligations:

- The data user must maintain control and evidence of access to the data by the organisation's staff.
- The Data Provider shall have the right to audit the Parties that process the Data made available by the Data Provider at its own expense, including also the reasonable material and direct costs of the audited Party. The purpose and scope of the audit is limited to verifying compliance with the material requirements of the applicable Data Set Terms of Use and applicable law.

Section 13. Data Security

The use of the Data is subject to the following specific data security obligation:

- The data user must appoint a Data Security Officer
- The user must immediately notify any security breach to the parties identified in Section 2
- The data user must implement measures to prevent unauthorised access and ensure secure processing of the data in accordance with the licence.
- The data user must have the security certifications indicated in Section 1.

Section 14. Confidential information

- The Parties acknowledge that the Data Set, as defined in Section 1, includes Confidential Information and that its use and processing shall be subject to the conditions set forth in the licence.
- The Data User undertakes to cease use and destroy the confidential information once their Participation Agreement has ended.

Section 15. Data protection

The Data includes personal data, and its receipt and processing is subject to the Data Protection Act.

The data user must have the necessary mechanisms in place to ensure compliance, as well as, where applicable, the certifications indicated in Section 1.

Section 16. Intellectual property rights

- The signing of the P Agreement and the exchange of any data within the data space does not give rise to the transfer of any intellectual property rights.
- Specific provisions relating to Intellectual Property Rights are included in Section 1.
- For the avoidance of doubt, any new Intellectual Property Rights created by a Party shall be vested in the creating Party, as further defined in the applicable legislation governing Intellectual Property Rights.

Section 17. Disclaimer and limitation of liability

- The Data Provider offers the data 'as indicated in Section 1' and 'as available' without warranty of any kind. The risk inherent in the suitability of the data for the User's purposes rests solely with the User.

Section 18. Entry into force and application

This right to use the Data shall take effect when the User accesses the Data and shall apply until the User ceases to process the Data.

Section 19. Refrain from sharing data and modifications

- The provision of Data shall terminate or the amended terms shall take effect within ninety (90) days after the Data Provider has notified the Users of the cessation of sharing or the amendments made to these terms and conditions, but the amendments shall not apply to Data received by the Users prior to the effective date of the amendments.

Section 21. Other terms

For the avoidance of doubt, it is acknowledged that the foregoing terms and conditions shall not in any way restrict the rights of users based on applicable mandatory law. In the event of any discrepancy between such mandatory law and these terms and conditions, the mandatory law shall prevail.

Section 22. Applicable laws and dispute resolution

The agreement incorporating these General Terms and Conditions shall be governed by and construed in accordance with European law.

3. CONNECTION DETAILS

The Data Provider undertakes to provide all the technical information necessary for connection and access to the Data through the corresponding connector.

This information must include:

- Host / Address of the server where the connector is deployed.
- Enabled access port(s).
- URL of the connector provider of the data.
- Supported protocols (e.g. HTTP, HTTPS, SSH, etc.).
- Authentication credentials (users, passwords, tokens, digital certificates or other defined mechanisms).
- Access keys or API keys necessary to consume the exposed services.
- Additional technical instructions necessary for the correct configuration and establishment of the connection.

Basic connector information

Host / Address of the server	
Port(s)	
Provider URL	

Connection details

Supported protocols (e.g. HTTP, HTTPS, SSH, etc.).	
Access keys or API keys	

Authentication credentials

Users(s)	
Password(s)	
Token	
Digital certificate(s)	

Additional instructions

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The Data Provider undertakes to keep this information up to date and to immediately communicate any changes that affect connectivity and access to the Data.

Signature

Name:

Date:

Company: